

No. I.

A TREATISE of the COURT of STAR CHAMBER*.

PART THE FIRST.

§. I. THE DIVISION OF THE TREATISE.

I CANNOT but with admiration reverence the grave judgment of the sages of the common law of England who have been abstinent in publishing their meditations and arguments in their professions, either holding it as a flag of vain-glory unworthy their gravity, or as one of Lycurgus' maxims, or their ancestors' Druides' precepts, *mandare memoria, et disciplinæ potius quam scriptis*; unlike to this cracking age, when all men in all professions *quicquid subito crepant omnino à statu Apollinis credunt*; who, for fear of burying their talent, post to the press to publish to others that which they well understand not themselves; it being assuredly no matter of necessity to publish the rea-

* A MS. copy of this Treatise, Harl. MSS. No. 1226. contains the following memorandum:

"This Treatise was compiled by William Hudson, of Gray's Inn, esq. one very much practised, and of great experience in the Star Chamber, and my very affectionate friend. His son and heir, Mr. Christopher Hudson (whose hand writing this book is), after his father's death, gave it to me 19 Dec. 1635.

"JO. FINCH,"

Ch. Just. C. P. 11. Car. 1.

Ld. Keep. Gr. Seal, 15. Car. 1.

Lord Mansfield quotes this MS. in the Case of the King v. Wilkes, (4. Burrow 2554.) and states the passage relating to the power of the king's attorney general, which is hereafter pointed out in PART III. §. 4.